

Tubim Energy

7, Milverton st, Ikoyi

Lagos Nigeria

Hello@tubimenergy.com

SALES PARTNER AGREEMENT

This Sales Partner Agreement ("Agreement") is entered into as of [Date], by and between:

Tubim Energy Ltd, a company engaged in the manufacture and sale of solar power stations ("Company"), and

[Partner Name], an independent sales partner ("Sales Partner").

Together referred to as the "Parties."

1. Appointment

The Company appoints the Sales Partner as a non-exclusive sales partner to market and sell Tubim Energy solar power stations. Unless a specific territory is designated in Schedule A attached hereto, the Sales Partner may market products throughout the Federal Republic of Nigeria, subject to competition from other Sales Partners and the Company's direct sales operations.

Nothing in this Agreement creates an employment relationship, agency, partnership, or joint venture.

2. Products

This Agreement applies to solar power stations manufactured by Tubim Energy and any additional products expressly approved in writing by the Company.

3. Definitions

"Net Sales Value" means the Manufacturer's Suggested Retail Price (MSRP) of the product at the time of sale, less any Company-authorized discounts applied to the transaction. Net Sales Value does not include shipping, delivery charges, installation fees, taxes, or payment processing costs.

4. Sales Models

Sales under this Agreement may occur under either of the following models, elected per unit or per transaction:

- (a) Commission-Based Sales, or
- (b) Reseller Purchases

A product unit sold under one model shall not qualify for benefits under the other model.

5. Commission-Based Sales

5.1 Standard Commission

For commission-based sales, the Sales Partner shall earn a 10% commission on the Net Sales Value of each unit sold.

5.2 Bulk Sale Commission

For any single commission-based transaction involving 100 units or more, the commission rate shall be 15% on all units in that transaction.

5.3 Commission Payment

Commissions become payable once customer payment has been fully received and confirmed by the Company and shall be paid within 24 hours of payment confirmation.

6. Reseller Purchase Model

The Sales Partner may purchase products directly from the Company at a 10% discount off the Manufacturer's Suggested Retail Price (MSRP).

Products purchased under this model may be resold immediately by the Sales Partner at MSRP or any higher price permitted by law.

Units purchased under the reseller model do not qualify for sales commissions.

7. Reseller Purchase Terms

7.1 Payment

All reseller purchases require full payment prior to dispatch. The Company may, at its sole discretion, extend credit terms to Sales Partners in good standing, subject to a separate written credit agreement.

7.2 Ordering Process

Reseller orders shall be placed through channels designated by the Company. The Company shall confirm order acceptance and expected dispatch date within 48 hours of receiving payment.

7.3 Title and Risk

Title and risk of loss pass to the Sales Partner upon delivery to the carrier or the Sales Partner's designated delivery address, whichever occurs first.

8. Monthly Performance Bonus

If the Sales Partner sells more than 20 units in a calendar month, the Company shall pay a performance bonus of ~~¥~~1,000 per unit sold during that month.

The monthly performance bonus applies to both commission-based sales and reseller sales, provided the units were legitimately sold to end customers and verified in accordance with Section 14 of this Agreement.

Monthly performance bonuses shall be calculated at month-end and paid no later than 7 days after the end of the month.

9. Exclusions and Anti-Double Counting

For the avoidance of doubt:

- (a) A unit sold on a commission basis is eligible for commission and the monthly performance bonus, but not reseller margin.
- (b) A unit sold under the reseller purchase model is eligible for reseller margin and the monthly performance bonus, but not commission.
- (c) No unit shall generate both commission and reseller margin.

10. Sales Partner Obligations

The Sales Partner agrees to:

- (a) Market the products honestly and accurately
- (b) Not misrepresent pricing, specifications, or warranties
- (c) Comply with all applicable laws and regulations
- (d) Avoid conduct that may harm the Company's reputation

11. Pricing Authority

Except as expressly permitted under the reseller model, the Sales Partner has no authority to modify pricing, grant discounts, or alter sales terms without prior written approval.

12. Intellectual Property

All trademarks, branding, designs, and marketing materials remain the exclusive property of Tubim Energy.

The Sales Partner is granted a limited, revocable license to use them solely for purposes of sales under this Agreement.

13. Confidentiality

All non-public business, pricing, customer, and operational information obtained through this relationship shall be treated as confidential.

14. Records and Audit

14.1 Record Keeping

The Sales Partner shall maintain accurate records of all sales transactions, including customer details, sale dates, and prices charged, for a minimum of 24 months following each transaction.

14.2 Audit Right

The Company may, upon 7 days' written notice, request documentation to verify sales claimed for commission or monthly performance bonus purposes. The Sales Partner shall provide the requested records within 14 days.

14.3 Discrepancies

If an audit reveals overpayment of commissions or bonuses due to inaccurate reporting, the Sales Partner shall reimburse the overpaid amount within 14 days. Discrepancies exceeding 10% of total payments in any audited period shall constitute a material breach.

15. Returns and Defective Products

15.1 Commission-Based Sales

If a customer returns a product or receives a refund for any reason, the Company may deduct the corresponding commission from future commission payments owed to the Sales Partner. If no future payments are due, the Sales Partner shall reimburse the commission within 14 days of written notice.

15.2 Reseller Purchases

Products purchased under the reseller model are sold as-is to the Sales Partner. The Company shall replace or repair products with verified manufacturing defects reported within 7 days of delivery to the Sales Partner, provided the products remain unopened and in original packaging.

15.3 End-Customer Warranty

All Tubim Energy products carry the manufacturer's standard warranty, which runs directly between the Company and the end customer. The Sales Partner shall provide end customers with warranty documentation supplied by the Company.

The Sales Partner is not authorized to modify, extend, or make representations about warranty terms.

15.4 Warranty Claims Process

For reseller sales, the Sales Partner shall direct end customers to contact the Company directly for warranty claims. The Sales Partner has no obligation to process warranty claims, nor authority to approve replacements or repairs on the Company's behalf.

16. Payment Handling

The Sales Partner is not authorized to collect payments on behalf of the Company unless granted prior written authorization specifying the scope, duration, and terms of such authorization. Verbal authorizations are not valid. Any authorized payment collection shall be documented and remitted to the Company within 48 hours of receipt.

17. Limitation of Authority

The Sales Partner may not:

- (a) Bind the Company to contracts or guarantees
- (b) Collect customer payments unless authorized in writing pursuant to Section 16
- (c) Represent themselves as an employee or agent of the Company

18. Term and Termination

This Agreement commences on the Effective Date and continues until terminated.

Either Party may terminate with 14 days' written notice.

The Company may terminate immediately for fraud, misrepresentation, or material breach.

Earned commissions and bonuses prior to termination remain payable in accordance with this Agreement.

19. Post-Termination Obligations

19.1 Return of Materials

Upon termination, the Sales Partner shall cease all use of Company trademarks, branding, and marketing materials within 7 days, and shall delete or return any confidential information in their possession.

19.2 Survival

Sections 13 (Confidentiality), 14 (Records and Audit), 15 (Returns and Defective Products), and this Section 19 shall survive termination of this Agreement.

20. Amendments

The Company may amend this Agreement by providing the Sales Partner with at least 30 days' written notice prior to the effective date of such amendment.

If the Sales Partner does not agree to the proposed amendments, they may terminate this Agreement by providing written notice before the amendment effective date, without penalty.

Continued performance under this Agreement after the amendment effective date constitutes acceptance of the amended terms.

No amendment shall reduce commissions, bonuses, or reseller discounts already earned prior to the amendment effective date.

21. Governing Law

This Agreement shall be governed by the laws of the Federal Republic of Nigeria.

22. Entire Agreement

This Agreement constitutes the entire agreement between the Parties and supersedes all prior discussions or understandings.

SIGNATURES

For Tubim Energy Ltd

Name: _____

Title: _____

Signature: _____

Date: _____

Sales Partner

Name: _____

Signature: _____

Date: _____